

with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Defendant vacate the hearing on the motion to strike;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.

Case Management Conference continued to 7.31.26. Parties are to not submit further case management statements prior to the next court date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2604068	LIGHTHOUSE HOSPICE CARE, LLC VS ADEYEMI	HEARING ON PETITION RE: ARBITRATION AWARD

Tentative Ruling: No tentative ruling. Hearing was continued to 9.01.26 for proof of service.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2504070	LIBERTAD VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT OF URIMARE LIBERTAD BY COUNTY OF RIVERSIDE, DAVID MCMILLAN, TRANSPORTATION AND LAND MANAGEMENT AGENCY (TLMA), RIVERSIDE COUNTY FIRE DEPARTMENT / CAL FIRE, RIVERSIDE COUNTY CODE ENFORCEMENT

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions

or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

In the present case, Plaintiffs assert causes of action for negligence, premises liability, dangerous condition of public property, statutory violations, and declaratory relief, all based on the same facts: that Defendants failed to maintain, inspect, and safely manage Mt. Edna Road, a fire access route, which caused physical injury, property loss, and emergency response failure during multiple fire events. (FAC at ¶¶ 1-4, 15-16, 35-73.)

“In California, all government tort liability must be based on statute.” (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457; Gov. Code § 815(a) [a public entity is not liable for any injury “[e]xcept as otherwise provided by statute”]; *Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442 [there is no common law tort liability for public entities—only statutory]; *Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832 [“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.”]; *Duarte v. San Jose* (1980) 100 Cal.App.3d 648; *Ladd v. County of San Mateo* (1996), 12 Cal 4th 913.) In addition, no statute permits a finding of liability based on “equitable principles.” (*Tuthill v City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089.) Since all liability under the Government Claims Act is statutory, each tort cause of action must be specifically alleged and every element of the statutory basis of liability must be set forth. (*Zipper v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

In the present case, Plaintiffs cite no statutes upon which Moving Defendants’ liability is based. The only potential statutory basis for County’s liability is Gov. Code § 835, which sets out the exclusive conditions under which a public entity may be held directly liable for injuries caused by a “dangerous condition” of public property. (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1132.) A public entity may be held liable only if all of the following elements are satisfied: (1) the condition on its property must be one that creates a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner; (2) the condition must have existed at the time of the injury; (3) the injury must have been “proximately caused” by the condition; (4) the condition must have created a “reasonably foreseeable” risk of the kind of injury suffered; and (5) either (i) the condition must have been created by a negligent or wrongful act or omission of an employee within the scope of his or her public employment, or (ii) the entity must have had “actual or constructive notice” of the condition sufficiently before the injury to have taken measures to protect against the risk involved. (Gov. Code §§ 830(a), 835; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 139.)

Here, there are no allegations in the FAC that County owns or is responsible for either Mt. Edna Road or Plaintiffs’ property. Additionally, Moving Defendants provide evidence that is the proper subject of judicial notice showing that Mt. Edna Road is not a County Road. (RFJN, Ex. B.) As Plaintiffs fail to allege facts showing any dangerous condition on County property, they fail to allege sufficient facts to state a cause of action for dangerous condition of public property. (Gov. Code §§ 830(a), 835; *Zelig, supra*, 27 Cal.4th at 1132; *City of Los Angeles, supra*, 62 Cal.App.5th at 139.) Plaintiffs also fail to allege any facts supporting McMillan’s individual liability for any of the damages suffered.

Defendants' Request for Judicial Notice as to Exhibits A, B, and C GRANTED. Request for Judicial Notice for Exhibit D is DENIED.

Demurrer as to the 1st, 2nd, 3rd, 4th and 5th Causes of Action by Defendants County of Riverside, Riverside County Transportation and Land Management Agency, Riverside County Code Enforcement, County Fire Department/Calfire and David McMillan "the County" is SUSTAINED, with leave to amend.

Plaintiffs to file an amended complaint within 15 days.

The Case Management Conference is continued to 8.26.26. An Order to Show Cause re Default of Defendant High Valleys Water District 47781 shall be set for the same date.